

Declaration”) address the merits of the assertions of supposed misconduct raised in the initial motion. The credible recitation of the events in the Bracy Declaration rebuts the largely second hand recitation of the supposed “callous disregard for the law” attributed to the attorney, including “kicking out” the process server and making accusations that the process server was “trespassing.” Upon review, the Court concludes that no grounds have been shown to issue an order to show cause regarding contempt or to take any further action.

4. Vexatious Litigant

The Court declines to *sua sponte* issue “an OSC to determine whether Plaintiff should be considered a vexatious litigant...” See Opposition, p. 7.

Nonetheless, the Opposition rightly points out a number of papers already filed early on in this case which fail to adhere to any proper procedural framework such as the “Notice of Material Misrepresentation by Attorney Jeffrey M. David” filed December 23, 2025, among other papers. See Opposition, pp. 10-11.

Plaintiff is ordered to refrain from filing serial papers, including “declaration(s)” or “notice(s)” not properly submitted in conjunction with ex parte applications or noticed motions or without a good faith procedural basis for the filing of such materials. THIS IS THE FIRST ADMONISHMENT AND ORDER BY THE COURT TO REFRAIN FROM SUCH CONDUCT. Failure to comply with this order and/or conduct which frustrates or obstructs such order may result in the imposition of sanctions against you, including, but not limited to, an award of attorneys’ fees and costs and/or monetary sanctions up to \$1,500 pursuant to Code of Civil Procedure section 177.5, striking of filed papers, terminating sanctions or other appropriate remedies.

Disposition

The Court further finds and orders as follows:

1. The Amended Motion for Leave to File is GRANTED. Plaintiff is granted leave to file an amended complaint herein. Such amended complaint shall be filed and served **within ten (10) days of notice of entry of this order**. The Motion for Leave to Amend is DENIED as MOOT.
2. The Demurrer is DROPPED from calendar, without prejudice, in light of the foregoing.
3. The Motion for an Order regarding Contempt is DENIED.
4. The Court shall issue the order after hearing.

2. 9:00 AM CASE NUMBER: C25-01093
CASE NAME: SHILOH PARKER VS. CHANNING HAWKINS
***HEARING ON MOTION IN RE: LEAVE TO AMEND COMPLAINT**
FILED BY: PARKER, SHILOH A.
TENTATIVE RULING:

See LINE 1 above.

3. 9:00 AM CASE NUMBER: C25-01093
CASE NAME: SHILOH PARKER VS. CHANNING HAWKINS
HEARING ON DEMURRER TO: FIRST AMENDED COMPLAINT
FILED BY: SAADA, JENDAYI
TENTATIVE RULING:

See LINE 1 above.

4. 9:00 AM CASE NUMBER: C25-01093
CASE NAME: SHILOH PARKER VS. CHANNING HAWKINS
*HEARING ON MOTION IN RE: PLAINTIFF'S FIRST AMENDED MOTION FOR LEAVE TO AMEND
COMPLAINT
FILED BY: PARKER, SHILOH A.
TENTATIVE RULING:

See LINE 1 above.

5. 9:00 AM CASE NUMBER: C25-01145
CASE NAME: COMMUNITY FUND 2, LLC, VS. VIKTORIYA VOLZHENINA
*HEARING ON MOTION IN RE: STRIKE PORTIONS OF PLAINTIFF'S 1ST AMENDED COMPLAINT
FILED BY: VOLZHENINA, VIKTORIYA
TENTATIVE RULING:

Denied as moot as Defendant's demurrer is SUSTAINED in full. See Line 6 below.

6. 9:00 AM CASE NUMBER: C25-01145
CASE NAME: COMMUNITY FUND 2, LLC, VS. VIKTORIYA VOLZHENINA
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: VOLZHENINA, VIKTORIYA
TENTATIVE RULING:

Background and Factual Allegations

Plaintiff owns real property located at 1532 Chanslor Avenue, Unit V, in Richmond, California ("Property"). (¶ 7.) The Property is subject to the CC&Rs of Defendant HOA. (¶ 8.) Defendant Volzhenina is the President of the Defendant HOA, as well as the owner of real property located at 1532 Chanslor Avenue, Unit N. (¶¶ 6, 9.) This unit is directly below Plaintiff's Property. (¶ 9.)

The Complaint alleges that while Plaintiff was attempting to sell the Property, Defendants made representations to third parties possibly interested in purchasing the Property that it had "squeaky floors" even though there was no obligation to disclose such information. (¶¶ 11-13.) Based on these allegations, Plaintiff asserts three causes of action: (1) breach of the recorded CC&Rs; (2) breach of fiduciary duty; and (3) intentional interference with contractual relations.

Standard for Demurrer